AN FORAS RIARACHÁIN
INSTITUTE OF PUBLIC ADMINISTRATION

# Certificate in Local Government Studies
# (Accredited by NUI)

## LESSON 11
## Library, Arts and Social Welfare

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## LEARNING OBJECTIVES:

When you have studied this lesson you should be able to:

- Describe the role and functions of the library service and outline the vision for the future development of the service.
- Explain the rationale for the involvement of local authorities in the development of the arts.
- Appreciate the role of local authorities in relation to recreation and amenities.
- Outline the functions of local authorities in the context of education, agriculture, health and safety and heritage.
- Have an appreciation of the issues relating to poverty, exclusion and equality

## 11.0 INTRODUCTION AND OVERVIEW

This lesson will address the local authority library service, the role of local authorities in the arts and in recreation and amenities, local government functions in agriculture and heritage, various social services in which local government plays a role and how local government interacts with education and health services. Issues relating to poverty, exclusion and equality are also examined in the context of the local government system.

## 11.1 THE LIBRARY SERVICE

The Local Government Act, 2001 (Part 9, Chapter 3) deals with the public library functions of local authorities. The most important provisions are as follows:

- County and city councils are defined as library authorities.
- The functions of library authorities are set out in broad terms – can include facilities (including mobile libraries) to allow the borrowing of books and access to other information and IT, and promoting activities and events related to art, language, education, culture, recreation or the general community interest.
- Libraries are a source of local historical information and may support the archive service.
- Local authorities should arrange for the proper management, custody, care and conservation of local records and local archives and for inspection by the public.

Library premises can be used for the display of public documents, such as Development Plans and so on, particularly as a result of night-time and weekend openings. Libraries are often used for exhibitions and bringing online access and familiarity to those who might otherwise not avail of such services.

The library service is headed by the City or County Librarian. The Department of Education and Skills makes a contribution to library authorities per pupil for the primary school library scheme. School libraries play an important role in providing access to modern teaching materials. In many rural counties, the local authorities provide a mobile library service from specially adapted vans.

Given the extensive branch network and mobile library facilities, the public library service has the capacity to serve citizens right across the country, including in relatively isolated locations. Public library services are also made available to those availing of a range of services and amenities, including hospitals, schools, prisons, day care centres, parish halls and other community facilities. Mobile libraries serve specific neighbourhoods, rural areas and smaller and more dispersed settlement populations.

Over the decades, the public library service has long provided a core method for people to access information and leisure reading facilities, and thus has played a major role in the advancement of education and literacy in society.

**Some statistics which reflect the reach and impact of our public libraries:**

More than **53.6 million** visits since 2018

**330** local libraries

Access to **7,000** eNewspapers and eMagazines from

Over **600** online eLearning courses at a variety of levels and comprising a wide range of subjects

**13,265,332** items in the collection

More than **76 million** items issued since 2018

**120+** countries in

**60+** languages

A collection of over **110,000** eBooks and eAudiobooks

**23** mobile libraries (including one cross-border service)

Over **110** language courses for speakers of 30+ languages

*Source: Department of Rural and Community Development, The Library is the Place*

Overall, the average number of library visits per head of population was 2.09 in 2022, although this had dipped from 3.57 in 2019. Libraries have a significant cultural role (e.g. delivering and co-ordinating events under both the Decade of Centenaries 2012-2022 and Creative Ireland initiatives). Recent years have seen libraries develop their role in a number of areas, including:

- Supporting and developing literacy skills, reading, and education, as well as 'skills for life' such as digital skills and financial literacy.
- Supporting learning, access to information and the acquisition of new skills.
- The library is a hub and welcoming space for community and cultural activity, encouraging and inspiring creativity and innovation within communities for people of all ages, backgrounds and abilities.

*Source: Department of Rural and Community Development, Our Public Libraries 2022*

*Our Public Libraries 2022 – Inspiring, Connecting and Empowering Communities* was the strategy to develop the public library service from 2018 to 2022. It has been replaced by *The Library is the Place: Information, Recreation, Inspiration* for the 2023-2027 period. Given the technological and service innovations over the years, these strategies have focused on improving access to, and the use and visibility of public libraries, and positioning libraries as the natural location for a range of services.

These more recent strategies build on achievements under previous strategies. It emphasises the need to continually develop the library service as an evolving 21st century community resource, while also stressing the general approach of previous strategies. This includes the development of libraries as multi-purpose centres of education and social development, including the expansion of 'Open Library' facilities which allow library access from 8am to 10pm, 7 days a week.

## 11.2 THE ARTS

### 11.2.1 Role of the Local Authority in Arts Development

The well-being of any society is dependent on the vitality of its communities. The arts play a critical role in enlivening our society, locally and nationally, and local authorities' investment in Ireland's creative and artistic resources has significantly contributed to Ireland's success economically, socially and culturally.

Local authorities support the arts for a number of reasons:

- The arts have an intrinsic value, which assists in developing people's creativity, in developing societal bonds and enabling communities to express themselves.
- The arts can be powerful instruments in assisting the local authority to achieve social and economic objectives.
- The arts contribute to the aims of different policies across a range of service areas. For example, a public art project may deliver a number of objectives, not only providing an art work or range of art works, but also serving development agendas across the services of housing, community, planning and parks.

The Local Government Act, 2001, Section 67 gives a local authority the power to "take such measures, engage in such activities or do such things (including the incurring of expenditure) as it considers necessary or desirable to promote the interests of the local community" such as:

- "General recreational and leisure activities.
- Sports, games and similar activities.
- Artistic, linguistic and cultural activities.
- Civic improvements.
- General environmental and heritage protection and improvement.
- Allotments, fairs and markets, and related amenities, facilities and services.
- The public use of amenities … and
- The promotion of public safety."

### 11.2.2 The Arts Act, 2003

This legislation sets out the role of the Arts Council (see below) with responsibility for the promotion and development of the arts, and that the Arts Council is independent in taking decisions on the funding of arts projects. The Act also requires that local authorities have plans for the development of the arts within their functional area. A local authority can also provide financial assistance or other supports to stimulate public interest in the arts, promote knowledge of the arts or improve standards in the arts within their areas.

### 11.2.3 Local Authority Assistance for the Arts

The network of arts officers reflects a recognition by local government of the value of professional expertise within the local authority system to promote and develop the arts within local areas. Local authorities are increasingly recognising the arts as a part of their core services. The addition of specialist positions within the arts offices demonstrates how much local authority arts programmes have evolved over time in both scale and ambition. The bulk of a local authority arts officer's work centres around organising a programme of activities, providing funding to arts organisations and artists, and delivering a service to individuals and communities in the area.

Local authorities run extensive and exciting annual programmes of activities. Programmes vary considerably from county to county, and they reflect the strengths and characteristics of local areas. Arts programmes include all of the art forms – visual arts, theatre, literature, dance, music, traditional arts, circus, and opera – and they work to engage all of the sectors of the community, placing an emphasis on community participation and social inclusion. Increasingly, arts offices are associated with the development of new work and with ambitious, large-scale projects of national profile, including support for local arts and cultural festivals.

The local authority arts office also provides an important source of grant-aid to artists and arts organisations in the area. Arts officers also provide information and advice on arts – this advice is given to individuals, groups and communities in the area and to the local authority itself.

### 11.2.4 The Arts Council and Creative Ireland

The Arts Council is a state agency established in 1951 to promote greater public interest, knowledge, appreciation and practice of the arts. The Arts Council commissions and publishes research and information and undertakes a range of development projects, often jointly with other public sector or non-governmental agencies.

Since 1985, the Arts Council has worked in a more formal partnership with local authorities, to support the arts development programmes of local authorities, including the co-funding of the salaries of local authority arts officers.

Since 2017 a Creative Ireland programme has also been run to support culture-based projects and events. Under this programme, each local authority established a culture and creativity team as a means of networking local authority expertise in the arts, heritage, libraries, economic and community development to promote creativity and innovation. Each local authority had adopted local cultural and creativity strategies to support local community projects in this area.

Changes in local government have intensified the role of the arts. Strategic Policy Committees now consider and develop local authority arts plans. This provides

opportunities for local authority and community-wide ownership and endorsement of local arts policy. Local ownership of the arts is integral in capturing the imagination of communities.

Every county in the country now has at least one dedicated arts building, and local authorities have played a critical role in the proliferation of arts buildings and spaces across the country, with many of these projects led by local authorities, and often supported by central government funding programmes.

## 11.3 RECREATION AND AMENITY

### 11.3.1 Recreation and Leisure facilities – Rationale

In recent years, local authorities have expanded some of their core services and developed a more co-ordinated leisure-facilities framework. Reasons for this include:

- The provision of opportunities for people of all ages and abilities to lead an active and healthy lifestyle through participation in leisure facilities, given that people are living much longer and the increased awareness of physical and mental health.
- The promotion of an understanding of the social, artistic, cultural heritage of local areas.
- Optimising the contribution of local leisure services to the potential of an area to attract inward investment and tourism.
- Balancing the provision of publicly-accessible leisure services with the need to protect, enhance and sustain the environment.
- The development and strengthening of links and partnerships with other agencies, voluntary groups and commercial organisations concerned with the provision of leisure facilities.

The functions and duties of local authorities in the field of recreation and amenity include the provision and maintenance of public libraries, swimming pools, parks and open spaces, and the provision of grants or other assistance to artistic, sporting and community groups. These activities provide a mechanism for local authorities to foster a community-development role that is both positive and high profile.

Because much of the expenditure is discretionary, this programme of activities must compete for funding with road maintenance, housing maintenance and other essential services, which means it is often overshadowed. Nevertheless, the activities of this programme influence the public perception of local authorities through the high level of community contact. This programme has become more important in recent years for a number of reasons, including public demand for more services due to greater awareness and appreciation of artistic, heritage and natural amenities, growth in leisure time and the need for recreation and amenity facilities.

### 11.3.2 Parks and Open Spaces

Local authorities have various powers for the provision and operation of parks, playgrounds and recreation areas owned by them. Playing fields and open spaces are frequently incorporated in the designs for new housing schemes, and the Development Plans for local authorities contain policies and objectives for the provision or protection of areas zoned for recreation or amenity. Publicly owned property is often let or leased by local authorities to allow local clubs and organisations provide sporting facilities. Local authority investment in other amenities (such as greenways, walking routes, heritage trails, waterways and marinas, etc) also support recreation and leisure activities.

The parks function of a local authority is also concerned with the development and maintenance of smaller open spaces in housing estates including tree and shrub planting. Local authorities also work in partnership with Tidy Towns and other community groups in order to maximise the environmental and amenity benefit of open space. The proper use and maintenance of open space contributes very positively to the enjoyment of residential life and also attracts tourists and greater commercial activity. The Annual Tidy Towns Competition is run as a high profile national event, signifying the greater importance in all our lives of a clean, green, visually attractive and healthy environment and how mobilisation of local communities and volunteers can contribute to this effort. Local authorities also engage with and support local groups in competitions and initiatives such as Pride of Place to promote environmental and community enhancement.

### 11.3.3 Other Recreation and Amenity

*Swimming Pools*

A number of local authorities operate swimming pools. The cost of operating these pools is quite high, and in more recent times many private leisure centres, gyms and hotels have constructed pools. Some local authorities have reduced their operating costs through combined heat and power plants.

*Sports Partnerships*

Sport Ireland has supported the development of Sports Partnerships at county level to promote projects and programmes for the widest possible participation rates. Local authorities play a major role in the formation and development of these partnerships. The key aims are to increase participation in sport and to ensure that local resources are used to best effect as well as supporting the development of clubs and coaching and improving links between clubs and schools at local level. Supporting participation by both young children and older people are is also a key concern.

*Sports Capital Programme*

This programme is run by the Department with responsibility for sport and allocates funding to projects that are directly related to the provision of sport or recreational sport facilities and are of a capital nature. It seeks to foster an integrated and planned approach to developing sports and physical recreation facilities throughout the country. In particular, its objectives are to:

- Assist voluntary and community organisations, national governing bodies of sporting organisations, local authorities and in some cases ETBs and schools to develop facilities to help maximise participation in sport and physical recreation.
- Prioritise the needs of disadvantaged areas in the provision of sports facilities.
- Encourage the multi-purpose use of local, regional and national sports facilities by clubs, community organisations and national governing bodies of sport.

## 11.4 HERITAGE

Local authorities employ Heritage Officers and work in conjunction with the Heritage Council in the identification, protection, preservation and enhancement of the national heritage. The Heritage Council was established under the Heritage Act, 1995 to develop policies for the protection, preservation and enhancement of the national heritage, and to promote education, awareness and appreciation of our heritage.

National Heritage can include a wide range of local assets and amenities, including monuments, archaeological objects, heritage objects such as art and industrial works, documents and genealogical records, architectural heritage, flora, fauna, wildlife habitats, seascapes, wrecks, geology, heritage gardens, parks and inland waterways. Local authorities have a key role in ensuring the integration of heritage conservation into their activities and the enhancement of heritage at local level and also adopt local heritage plans.

The Heritage Council allocates funding for heritage projects that are carried out by community groups, individuals and educational institutions, covering a diverse range of heritage areas.

## 11.5 EDUCATION

Unlike other European countries, local authority involvement in education in Ireland is limited. Since responsibility for higher education grants was transferred to SUSI (Student Universal Support Ireland) in 2012, the principle role of local authorities in education is through the representation of elected members on the Education and Training Boards.

The Education and Training Boards Act 2013 abolished the 33 former Vocational Education Committees (VECs), which had existed since 1930, and replaced them with 16 Education and Training Boards (ETBs). The involvement of local authorities is primarily through representation on the board of the ETB, each of which has their own staff structure separate to the local authority. The Board comprises 21 members, including 12 local authority representatives, 2 staff representatives, 2 parents representatives and 5 members from bodies representing community/business interests.

The general functions of an Education and Training Board, stated under the Education and Training Boards Act 2013 (section 10), are to:

- "Establish and maintain recognised schools, centres for education and [adult and further] education and training facilities in its area…
- Plan for … and review the provision of education and training (including training and education for employment) in its area."

## 11.6 AGRICULTURE AND ANIMALS

### 11.6.1 Veterinary Services

The Food Safety Authority of Ireland (FSAI) was set up under the Food Safety Authority of Ireland Act, 1998, with a mandate to protect the health of the public from illness related to the consumption of food. Local authorities act as official agencies under the terms of the 1998 Act, and have entered into service contracts with FSAI to exercise responsibilities to ensure compliance and enforcement of the law relating to food safety and hygiene standards.

Local authority veterinary officers are employed by local authorities. They manage the implementation of the service contracts at local level, including reporting and communication arrangements between the FSAI and local authorities. Local authority responsibilities include official controls in smaller slaughterhouses, agri-businesses involved in the slaughter of low volumes of poultry, and businesses producing small quantities of fresh meat, and the official controls in wholesale butcher shops. The expenditure associated with implementing these service contracts is reimbursed to local authorities by the Food Safety Authority.

### 11.6.2 Control of Dogs

The Control of Dogs Act, 1986 (as amended), requires each local authority to employ a dog warden or arrange for the provision of a dog-warden service and to provide impounding facilities to address the problem of stray dogs. Some local authorities provide these services directly and others fund the service provided by the Society for the Prevention of Cruelty to Animals.

Stray dogs seized must be kept for a minimum of five days prior to either disposal or re-homing. Special regulations apply to the keeping and micro-chipping of certain breeds. The Control of Dogs Act also provides for the licensing of dogs. The local authority receives a proportion of the licence fee, which is payable through the post office, which acts as agent for the local authorities. The licence fees should fund the service, but this is rarely the case. The dog control service provides an essential service, as stray dogs can cause considerable damage to livestock, are potentially dangerous to children and can carry canine diseases.

### 11.6.3 Control of Horses

Under the Control of Horses Act, 1996 all local authorities are responsible for the control of horses in their areas. Because of operational and supervision difficulties, many counties now use privately owned and managed pound services. In some parts of the country (particularly urban areas), there can be problems with horses straying, roaming, causing danger on roads and being ridden without proper restraint by younger riders.

In areas where these problems exist, the local authority can name the area a "Control Area". Owners of horses who keep them in a Control Area must obtain a horse licence, issued by the local authority. Failure to have a horse licence in a Control Area can mean an on-the-spot fine or mean that the horse will be seized and impounded.

Owners of horses outside of a "Control Area" do not need a horse license. Local authorities have the power to appoint authorised persons to deal with any problems relating to the control of horses, in some instances working in conjunction with the Gardaí. Authorised persons have the power to seize and impound horses, impose an on-the-spot fine and take court proceedings.

## 11.7 HEALTH AND SAFETY

The Safety, Health and Welfare at Work Act 2005 sets out the main provisions for securing and improving the safety, health and welfare of people at work. The Act set out the rights and obligations of both employers and employees and provides for substantial fines and penalties for breaches of the health and safety legislation. The 2005 Act replaced the Safety, Health, and Welfare at Work Act 1989.

The legislation applies to all employers, employees (including fixed-term and temporary employees) and self-employed people in their workplaces. Various regulations are made under this legislation to update standards or to specify standards in particular areas of work.

Some core features of this area are outlined below – further information on this area is provided in the Lesson on Human Resource Management.

### 11.7.1 Employer's Duties

Under Section 8 of the Act the employer has a duty to ensure the employees' safety, health and welfare at work as far as is reasonably practicable. In order to prevent workplace injuries and ill health, the employer is required, among other things, to:

- Provide and maintain a safe workplace (including safe use of facilities and equipment).
- Prevent risks from use of any equipment or substance or from exposure to physical risks, noise and vibration.
- Prevent improper conduct or behaviour likely to endanger health and safety.
- Provide regular training on health and safety.
- Provide protective equipment and clothing where necessary.

### 11.7.2 Employees' Duties

The duties of employees while at work are set out in Section 13 of the Act. These include the following:

- To take reasonable care to protect their own health and safety and those of their colleagues.
- Not to engage in improper behaviour that puts them or others at risk.
- Not to be under the influence of drink or drugs at work.
- To undergo medical or other assessment if requested by their employer.
- To report any defects in the workplace or any equipment.

### 11.7.3 Safety Statement

A Safety Statement is an action programme drawn up in the workplace designed to safeguard the health and safety of those at work. It details in writing how health and safety is managed in the workplace, whether this relates to an office, building site, public road, machinery yard, public park, leisure centre, etc. The Safety Statement should be used to plan and control activities undertaken in the workplace so that accidents don't occur or are prevented where possible.

Under the Safety, Health and Welfare at Work Act 2005 every employer is required to carry out a risk assessment for the workplace that should identify any hazards present in the workplace, assess the risks arising from such hazards and identify the steps to be taken to deal with any risks. Risks (the likelihood of the harm occurring, and the severity of the consequences if it does) arising from those hazards must be assessed and categorised. Appropriate control measures must be identified to eliminate the hazards and, where that cannot be done, to reduce the risks.

The safety statement must:

- List the control measures to be taken to avoid hazards and reduce risks.
- Name those responsible for implementing and maintaining the measures.
- Contain plans to deal with an emergency or any serious and imminent risks.

### 11.7.4 Health and Safety Authority (HSA)

The principal functions of the Health and Safety Authority (HAS) include enforcement and supplying information and advice. The Authority is empowered to monitor compliance with legislation, to issue or approve codes of practice, and to undertake enforcement measures. It also provides information, advice and guidance for employers and employees.

HSA enforcement powers include serving a notice directing that proposed remedial action be taken, or that certain activities be stopped, or alerting organisations about complying with the law. The HSA may also apply to the Courts for an order and, if necessary, requesting that a fine and / or prison sentence be imposed.

## 11.8 HEALTH SERVICE EXECUTIVE AND EMERGENCY PLANNING

The local authorities and the Health Services Executive work closely together in many areas, including social housing, homelessness, Travellers and related matters. In addition, areas of common interest such as water quality, public nuisances, social inclusion and public health matters require close co-operation and collaboration.

Another area where local authorities would interact with the HSE (and a range of other organisations) is in the field of emergency planning. 'Major emergency plans' are in place for all local authority areas, outlining risks that can arise from things like severe weather events, flooding, transport accidents, industrial or environmental accidents, major fire or crowd incidents, or health pandemics. Responding to these kinds of incidents typically requires close cooperation between emergency services (local authorities, HSE, Gardaí), and clear protocols around the respective roles and responsibilities of each (see also Lesson on Environmental Protection).

## 11.9 POVERTY, EXCLUSION, INEQUALITY

### 11.9.1 Introduction

Local government has an important role to play in developing and implementing local responses to poverty and exclusion. Traditionally the role of local authorities in this area was seen as essentially limited to the provision of social housing. Increasingly, however, it is

thought that their role can be both more strategic and more wide-ranging. Local councils enjoy a unique role in terms of providing local civic leadership. They also have an intimate knowledge and understanding of their own local areas and the needs and priorities of their local communities. Finally, local government is, above all, about using resources and services to deliver responses that are appropriate to local areas and settings. In that context, local authorities have the potential to use the full spectrum of their services to either help reduce, or help people cope better with the impact of poverty and exclusion.

Students should bear in mind that there is a very wide range of government agencies and bodies with roles in this sphere. Almost none of these bodies has any direct local accountability, which limits the governance role of local authorities quite severely. By way of example, some areas continue to experience poor educational outcomes, often seen as precursor to disadvantage and inequality, continue in Ireland despite high expenditure by the State. Early school leavers have a higher risk of unemployment and are the most vulnerable group of those attempting to enter the labour market. Local government has little direct influence on this. There is considerable variation in school retention rates across Ireland, with some areas experiencing a higher than average early school leaver rate (e.g. parts of Dublin city and some other urban areas). This national variation level highlights the fact that early school leaving requires localised and community-based interventions as well as interventions on a national level.

Let's note some relevant definitions of key terms provided by the Office for Social Inclusion within the Department of Social Protection:

- "Deprivation is defined as unmet basic human needs.
- Poverty is deprivation due to a lack of resources, both material and non-material (e.g. income, housing, health, education, knowledge and culture). It requires a threshold to measure it.
- Social exclusion is being unable to participate in society because of a lack of resources that are normally available to the general population. It can refer to both individuals and communities in a broader framework, with linked problems such as low incomes, poor housing, high crime environments and family problems.
- Inequality is a relative concept. It does not measure deprivation or poverty and does not require a threshold. It is possible for inequality to exist with or without poverty."

A number of indicators are typically used to track progress in social inclusion, such as income, levels of deprivation, early school leaving rates, number of jobless households, long-term unemployment rates, and life expectancy.

There are various categories of inequalities in the Irish society. Jobs are not necessarily available to everyone even when the country is at near full employment. Not everyone that is employed is paid well, and many people at household formation stage find themselves

unable to save to purchase a home of their own. Access to health care is improved by private health insurance, which the less well-off cannot afford. Those in poverty are thus to remain in poverty unless the State solves this social injustice. Homelessness is a feature of this inequality and injustice.

### 11.9.2 Poverty

The traditional understanding of poverty in Ireland was a fairly basic one, *i.e.* it had simply to do with people's lack of money or resources. Increasingly, however, government took a wider view of poverty and began to consider questions such as:

- What are the causes of poverty?
- What are the consequences of poverty for individuals; communities; and society generally?
- How might those causes and effects of poverty be addressed?

In recent decades, governments have been developing positions and responses to those questions through a series of programmes and strategies. Poverty and social exclusion can affect all age groups. It is multi-faceted and combating it requires a multi-policy and multi-agency response. This is reflected in the definition of poverty and social exclusion that the Government first adopted in a National Anti-Poverty Strategy adopted in 1997 (p. 3):

> "People are living in poverty if their income and resources (material, cultural and social) are so inadequate as to preclude them from having a standard of living which is regarded as acceptable by Irish society generally. As a result of inadequate income and resources people may be excluded and marginalised from participating in activities which are considered the norm for other people in society."

The official Government-approved poverty measure used in Ireland is consistent poverty, developed independently by the Economic and Social Research Institute (ESRI). This measure identifies the proportion of people, from those with an income below a certain threshold (less than 60% of median income), who are deprived of two or more goods or services considered essential for a basic standard of living.

A series of National Action Plans / Strategies and Roadmaps on Poverty and Social Inclusion have been adopted since the 1990s.

### 11.9.3 From Poverty to Social Exclusion

The notion of social exclusion widens the poverty debate by recognising that for many people life is difficult not just because of the absence of money or resources. Social exclusion is the term used to describe the *condition* of not being able to participate fully in society, of not being able to enjoy the good things in life. Very often that *condition* is due to people's lack of money or resources, *i.e.* they simply cannot afford the good things in life. Increasingly, however, it is also due to other influences. These can include:

- Direct discrimination against particular groups or categories of people.
- "Physical" barriers such as a lack of transport or the absence of services/facilities in areas/communities.
- People not having the confidence to literally step forward and participate in society and what it offers.
- People lacking the skills/qualifications which may be needed for social and economic participation.
- Organisations working on the basis of "one size fits all" and not being geared to the particular needs of people with particular problems.

Many people now argue that the concept of social exclusion broadens our understanding of poverty, its causes and consequences. Rather than being a set condition that people are "in", social exclusion is a set of processes that push people out to the edge of society and which distances them further and further from the chance of a job or an adequate income, from social and educational opportunities, from social and community networks, and from power and decision-making.

### 11.9.4 The Role of Local Government and Some Initiatives

Local government has a long tradition in Ireland in addressing poverty and exclusion. Social housing alone –provided for people for whom the private housing market doesn't work – has bettered the lives of hundreds of thousands of people. As other Lessons of this course make clear, the role of local government in supporting local community development and public participation has increased in recent years. But aside from these more obvious examples, it could be argued that virtually every local government service impacts directly or indirectly on poverty and exclusion. Local authorities can also significantly impact on poverty/ exclusion simply by being more aware of the circumstances and needs of their service users – for example, by recognising that many adults in Ireland have literacy difficulties and taking this into account how the local authority communicates with its public, especially those who experience poverty and social exclusion. Local authorities can also make a contribution to addressing disadvantage by ensuring that services reflect on social inclusion considerations when making decisions around the design and delivery of services such as housing, planning, transport, recreation, etc.

All local authorities are obliged to include a clear social inclusion focus within their Corporate Plans. There are two interrelated aspects to this requirement. First, councils must take their corporate planning process forward in an inclusive way, making sure they reflect the needs, views and aspirations of local people. Second, they must show in the body of the Plan what the local poverty/ exclusion priorities are and what the council proposes to do in response.

### 11.9.5 Equality and Public Sector Duty

Although significant progress has been made is combating disadvantage and discrimination, particularly over recent decades, many groups in Ireland still face barriers in many areas of their lives.

To take one example, barriers can effectively prevent women from developing and reaching their full potential as individuals. They also prevent society from fully benefiting from the contributions women can make. The main barriers now tend to be social, economic, and/or cultural. Legislative barriers, those actually rooted in the law of the land, have effectively disappeared. The key piece of Irish legislation on gender equality is the Equal Status Act, 2000 (as amended). The Act essentially promotes equality, prohibits certain types of discrimination, prohibits harassment (sexual and other types), and prohibits victimisation. Further details on legislation designed to prevent discrimination in a workplace setting is provided in the Lesson on Human Resource Management.

The Equal Status Act sees discrimination as the treatment of a person in a less favourable way than another person. Discrimination on the following nine grounds is prohibited by the Act:

| **Ground** | **Which means …** |
|---|---|
| Gender | A man; a woman; or a transsexual / transgender person. |
| Marital Status | Single; married; separated; divorced or widowed. |
| Family Status | Pregnant; parent; or a resident primary carer. |
| Sexual Orientation | Heterosexual; gay; lesbian or bi-sexual. |
| Religion | Different religious belief or none |
| Age | Everybody over 18 |
| Disability | People with physical; intellectual; learning; cognitive; and emotional disabilities and a range of medical conditions |
| Race | A particular race; skin colour; nationality; or ethnic origin |
| Traveller | People who are members of the Traveller Community. |

All public service bodies, including local authorities, have a legal obligation under the Irish Human Rights and Equality Act 2014 to assess and report on how it promotes equality, prevents discrimination, and protects the human rights of both staff and service users (sometimes referred to as the 'public sector duty').

## KEY CONCEPTS

- Health Service Executive (HSE)
- Health and Safety Authority (HSA)
- Education and Training Board (ETB)
- Food Safety Authority of Ireland (FSAI)
- Arts Council
- Creative Ireland
- Sport Ireland
- Heritage Council
- Control Area
- Service Agreement
- Safety Statement
- Major Emergency Plan
- Deprivation, poverty, social exclusion
- Equality, discrimination
- Public Sector Duty

## STUDENT ACTIVITIES

1. Consult the library development plan for your local authority. Having reviewed this, visit your local library to review the services on offer.

2. Examine the achievements of your local authority in respect of library service performance indicators by reviewing the latest NOAC report on performance indicators. How do these results compare with other similar local authorities?

3. Consult your local arts plan and examine what groups or projects will benefit from funds provided by the council in the current year. Also investigate the local culture and creativity strategy for your area. Consider some of the similarities and differences in projects supported under these programmes.

4. Consult the website for the local sports partnership for your area to see the range of initiatives and activities being undertaken. Consider to what extent these cater for different groups in society, such as young people, the elderly, or those who are new to the area.

5. Examine the report for last year from the National Tidy Towns Competition website for your own town or the nearest town or village to you. What assistance could the local authority provide to improve the overall mark?